

TENTATIVE RULING(S) FOR JULY 16, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2203930

FINDLAY VS CAL STAT LAB

TENTATIVE RULING(S):

Before the Court are counsel Fang Chen's motions to be relived as counsel for Cal. Stat Labs, Delia, and Kurt. Plaintiff opposes and Chen replies.

ANALYSIS

Statement of Law

A litigant's attorney may withdraw from representation at any time before or after judgment or final determination either with the client's consent or by court order after notice to the client. (Code Civ. Proc., § 284.)

California Rules of Professional Conduct, rule 1.16 provides various situations in which a lawyer "shall withdraw from the representation of a client" and "may withdraw from representing a

client.” (Rules Prof. Conduct, rule 1.16(a), (b).) As relevant here, a lawyer may withdraw from client representation if “the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.” (Rules Prof. Conduct, rule 1.16(b)(4).)

“The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (*Manfredi & Levine v. Super. Ct.* (1998) 66 Cal.App.4th 1128, 1133 (*Manfredi*).) “Where issues of confidentiality prevent ‘counsel from further disclosure and the court [accepts] the good faith of counsel’s representations, the court should find the conflict sufficiently established and permit withdrawal.’” (*Id.*, at p. 1133.)

Conflicts of interest come in all shapes and sizes. (*Aceves v. Super. Ct.* (1996) 51 Cal.App.4th 584, 590 (*Aceves*).) One circumstance giving rise to a conflict is where there has been an irreparable breakdown of the working relationship between counsel and client. (*Manfredi, supra*, 66 Cal.App.4th at pp. 1134-1135.)

Merits

Counsel Chen submits substantially the same declarations for all three motions, where he attests that the attorney-client relationship with Cal. Stat Labs, Delia, and Kurt has broken down since late 2025 to the extent that continued representation has become unreasonably difficult. (See Chen Declarations supporting all 3 motions.) The breakdown appears to stem from Chen’s inability to reach his three clients or communicate with them sufficiently for a period of at least two months before the date of his January 13, 2026, declaration. (*Ibid.*)

Chen relates that he has been unable to communicate with Cal. Stat Labs through its CEO (Kurt) for about two months as of the date of his January 13, 2026, declaration. (See Chen Decl. re Cal. Stat Labs.) Chen provides screenshots of failed email communications to team@individx.com (Kurt) and delia@individx.com (Delia). (*Id.*)

Chen states that the last known mailing address for all three clients is 79200 Corporate Center Drive, Suite 101, La Quinta, CA 92253 and that he will serve the motion papers upon his clients at that address. Proofs of service are on file in the Register of Actions for all three motions reflecting mail service upon Cal. Stat Labs, Delia, and Kurt at the La Quinta address on January 16, 2026.

On June 8, 2026, Chen filed a supplemental document entitled “Declaration of Due Diligence in support of Attorney’s Motion to Be Relieved as Counsel” (Supp. Chen Decl.). Therein, Chen describes trying to reach Delia at five different telephone numbers on April 2, 2026. (Supp. Chen Decl., ¶4.) On May 14, 2026, Delia contacted Chen by voicemail, stating she recently returned from The Philippines. (Supp. Chen Decl., ¶6.) Chen and Delia communicated by text message from May 14 to May 20, 2026; Delia picked up her case files from Chen’s office on May 20, 2026. (Supp. Chen Decl., ¶¶7, 8, Exh. A.) Delia declined to sign a substitution of attorney form. (Supp. Chen Decl., ¶9.)

Moving Party’s evidence demonstrates persuasively that there has been a breakdown in communication between Chen and his three clients since late 2025 and continuing until at least May 2026.

Merits of Opposition

There is no opposition to the motion from Cal. Stat Labs, Delia, or Kurt. Plaintiff Findlay opposes the motion through declaration of her counsel Shirazi, who argues that Counsel Chen should be held liable for abuse of the discovery process. (Shirazi Decl., ¶18.) In his lengthy declaration, Shirazi describes the various discovery monetary sanctions that have been imposed in this case. (Shirazi Decl., ¶¶6-13, Exh. B.) Shirazi attaches multiple court minute orders and one detailed court ruling from Honorable Michael A. Dauber dated March 24, 2026, that detail various sanctions imposed in this case as a result of Plaintiff’s discovery motions. (Shirazi Decl., Exh. B.)

Specifically, the imposed sanctions were: \$2,057.80 on October 8, 2025; \$2,057.80 on October 9, 2025; \$3,387.80 on March 24, 2026; \$1,961.70 on March 25, 2026 (stayed pending 4/6/26 mediation). (Shirazi Decl., ¶6, Exh. B.)

Notably, the orders and ruling in Exhibit B do not specify against whom the sanctions are imposed (e.g., against specific Defendants alone, against Counsel Chen, or both the Defendants and Counsel Chen). (Shirazi Decl., Exh. B.) Shirazi, however, states that the Honorable Corey G. Lee stated in open court on October 8, 2025, that sanctions would be imposed against

Defendants and their counsel. (Shirazi Decl., ¶9.) Shirazi does not make a similar statement about the sanctions imposed on October 9, 2025.

Shirazi somewhat obliquely states that the Honorable Michael A. Dauber, during the March 24, 2026, hearing, observed that sanctions against Defendants and their counsel were issued because the responses were deficient, not because of lack of verifications. (Shirazi Decl., ¶11.) Counsel Chen disputes the statements attributed to Judge Dauber in Shirazi's declaration at paragraphs 10, 11, and 13; Chen attests he appeared by video at the March 24 and 25, 2026, hearings which were not reported or recorded and no transcript exists. (Supp. Chen Decl., ¶17.) In this regard, there is no evidence before the Court that the October 9, 2025, and March 25, 2026, sanctions were imposed against Counsel Chen.

Shirazi notes that Chen paid the October 8 and 9, 2025, sanctions (plus interest) totaling \$4,476.18. (Shirazi Decl., ¶22.) According to Shirazi, the March 2026 sanctions (\$3,387.80 and \$1,961.70) have not yet been paid. (Shirazi Decl., ¶27.)

Apparently, Shirazi contends that the motion to be relieved as counsel should be denied because Counsel Chen has failed to pay the March 2026 discovery sanctions, relying on *Masimo Corp v. The Vanderpool Law Firm, Inc.* (2024) 320 Cal. Rptr. 3d 704, 711 (*Masimo*). However, the *Masimo* pinpoint cite does not hold that a court may deny a motion to be relieved as counsel because of failure to pay outstanding discovery sanctions. (*Id.*, at p. 711.) In *Masimo*, the lawyer subject to sanctions had substituted out of the case. (*Id.*, at pp. 707, 711.) In short, Plaintiff has not supplied any legal authority that it is appropriate to deny a motion to be relieved as counsel because the attorney in question may owe outstanding discovery sanctions. Therefore, the fact that Counsel Chen may or may not owe outstanding discovery sanctions in this case is not proper grounds to deny his three motions to be relieved as counsel. Because Chen has presented adequate evidence of an irreparable breakdown in communications and working relationship with his three clients, it is appropriate to grant his three motions to be relieved as counsel.

RULING

For all the reasons stated above, the Court GRANTS attorney Chen's three motions to be relieved as counsel as to Cal. Stat Labs, Delia, and Kurt, effective immediately upon Chen's filing of proofs of service reflecting service of the court's order (or notice of ruling regarding same) upon the three Defendants by U.S. mail at their last known addresses.